

April 3, 2026, Civil Law & Motion Tentative Rulings

1. CU0001395 Eric Butterworth et al vs. Mountain Concepts, LLC et al

Appearances are required. The Court is inclined to grant Attorney Alexandra M. Asterlin's unopposed motion to be relieved as counsel for all Defendants. Counsel shall confirm whether the motion is intended to include Mountain Concepts, LLC as both Defendant and Cross-Complainant.

The Court, on its own motion, continues the April 13, 2026, case management conference to June 15, 2026, at 09:00. Counsel Asterlin shall give notice to all parties.

In addition, Counsel is ordered to prepare and submit a revised order (MC-053) that reflects the continued case-management conference date. The order relieving counsel will be deemed effective only when Counsel files a proof of service with the Court of a copy of the signed order on the client. See California Rules of Court, rule 3.1362(e). Counsel shall submit the revised order for the Court's signature within two (2) court days of the Court's order becoming final.

2. CU0001683 County of Nevada vs. Michael James Taylor

Defendant's Motion for Entry of Judgment on the Cross-Complaint

Defendant's unopposed motion for entry of judgment on the cross-complaint is construed as a request for dismissal of the cross-complaint pursuant to Code of Civil Procedure section 581(f)(1) after the County's demurrer to the cross-complaint was sustained without leave to amend. See October 10, 2025, Order. As construed, the motion is granted. Plaintiff shall submit an appropriate order approved as to form by Defendant within 10 days. See Code Civ. Proc. § 581d ("All dismissals ordered by the court shall be in the form of a written order signed by the court and filed in the action and those orders when so filed shall constitute judgments and be effective for all purposes...."); *Powell v. County of Orange* (2011) 197 Cal.App.4th 1573, 1575 ("an order of dismissal is ineffective as a judgment under Code of Civil Procedure section 581d ... unless it is in writing, signed by the trial court, and filed.").

Defendant's Motion for Reasonable Accommodation

Defendant's motion for reasonable accommodation of his disabilities under the Americans with Disabilities Act and Rule of Court 1.100, is granted in part.

Rule 1.100 states and implements the policy of the California courts to "ensure that persons with disabilities have equal and full access to the judicial system." Rule of Court 1.100(b).

"Accommodations" are defined as

actions that result in court services, programs, or activities being readily accessible to and usable by persons with disabilities. Accommodations may include making reasonable modifications in policies, practices, and procedures; furnishing, at no charge, to persons with disabilities, auxiliary aids and services, equipment, devices, materials in alternative formats, readers, or certified interpreters for persons with hearing

impairments; relocating services or programs to accessible facilities; or providing services at alternative sites. Although not required where other actions are effective in providing access to court services, programs, or activities, alteration of existing facilities by the responsible entity may be an accommodation.

Rule 1.100(a)(3) (*italics added*).

Under Rule 1.100(c)(1), requests for an accommodation “may be presented *ex parte* on a form approved by the Judicial Council, in another written format, or orally.” Requests “must include a description of the accommodation sought, along with a statement of the impairment that necessitates the accommodation. The court, in its discretion, may require the applicant to provide additional information about the impairment.” Rule 1.100(c)(2).

Once the request is submitted, the court “must consider, but is not limited by, California Civil Code section 51 *et seq.*, the provisions of the Americans With Disabilities Act of 1990, and other applicable state and federal laws in determining whether to provide an accommodation or an appropriate alternative accommodation.” Rule 1.100(e)(1).

Under Title II of the ADA, “no qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs, or activities of a public entity, or be subjected to discrimination by any such entity.” 42 U.S.C. § 12312. Similarly, California's Unruh Civil Rights Act provides that “[a]ll persons within the jurisdiction of this state are free and equal, and no matter what their ... disability, medical condition ... are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.” Civ. Code § 51(b); *see also* Civ. Code § 54. Again, in accordance with these provisions, Rule 1.100 defines accommodations as “actions that result in court services, programs, or activities being readily accessible to and usable by persons with disabilities.” Rule 1.100(a)(3).

The court may deny a request for an accommodation only when it determines that: (1) the applicant fails to satisfy the requirements of the rule; (2) the requested accommodations “would create an undue financial or administrative burden on the court;” or (3) the requested accommodation “would fundamentally alter the nature of the service, program, or activity.” Rule 1.100(f); *see In re Marriage of James M. and Christine J.C.* (2008) 158 Cal.App.4th 1261, 1273 (outlining same requirements).

At bar, Defendant moves for appointment of legal counsel at county expense or alternative accommodations in connection with his reported disability. Plaintiff opposes the motion to the extent it seeks appointed counsel at county expense, but otherwise “remains open” to “reasonable procedural accommodations.”¹

The Court concludes that alternative accommodations in keeping with those suggested by Mr. Taylor are appropriate, reasonable and more than adequate to address Mr. Taylor’s disabilities

¹ The Court has reviewed all public and sealed filings in connection with the instant motion including the sealed filing of Mr. Taylor from his health care provider.

and to ensure he has equal and full access to the judicial system in connection with the instant lawsuit. Those accommodations shall be as follows:

- First, to the extent that Mr. Taylor is unable to be prepared for oral argument on the normal hearing date after a tentative ruling is posted, he may request postponement of oral argument for a reasonable period of time.
- Second, to the extent that Mr. Taylor needs time to process oral argument made by the opposing party, Mr. Taylor may request a short recess in order to prepare any oral rebuttal arguments, and/or request an opportunity to provide rebuttal argument in writing within a reasonable period of time after argument is completed.
- Third, under the Local Rules, law and motion argument is generally limited to five minutes per side. To the extent that Mr. Taylor needs additional time to present oral argument, he may request additional reasonable argument time.
- Fourth, the Rules of Civil Procedure, the Local Rules and orders of the Court specify deadlines and/or required formatting for written submissions by the parties during pre-trial proceedings. To the extent that Mr. Taylor needs additional time to submit the same, he may request the Court to extend those deadlines for a reasonable period of time. The Court will be prepared to accept written submissions from Mr. Taylor that substantially comply with required formatting requirements, even if not in full compliance with the same. In the alternative, if some document should fail to be substantially compliant, the Court, upon request, will consider a reasonable extension of time for resubmission of the same.
- Fifth, to the extent that any proceedings are extended/lengthy, the Court (in addition to its normally scheduled breaks) will also, upon request, take additional reasonable breaks to provide Mr. Taylor an opportunity for respite.

The Court notes that it previously granted temporary accommodations to Mr. Taylor. *See, e.g.*, 2/13/26 R.T. describing 10/8/25 ruling regarding temporary accommodations. The Court has had numerous opportunities to observe the written and oral advocacy of Mr. Taylor to date (with the benefit of those accommodations) and finds that Mr. Taylor, to date, has been fully able to zealously and competently advocate on his behalf. The Court is confident he will be able to continue his zealous and competent advocacy hereafter with the suggested accommodations and will continue to have a full and fair opportunity to present his case.

Conversely, Mr. Taylor has *not* presented sufficient evidence to warrant appointment of counsel for this particular case, that is, he has failed to demonstrate that appointed counsel is an appropriate or reasonable accommodation given the limitations he attributes to his disabilities.

A few additional observations are in order. First, the accommodation requested, appointment of counsel in a civil case, is substantially different from the services the courts provide to nondisabled *pro se* litigants in most civil litigation. No California court or statute has established a general due process right to counsel in civil cases. *See County of Santa Clara v. County*

Superior Court (1992) 2 Cal.App.4th 1686, 1690, n. 3; *Hunt v. Hackett* (1973) 36 Cal.App.3d 134, 137-138; *Walker v. State Bar of California* (1989) 49 Cal.3d 1107, 1116.² Denying Taylor appointed counsel will not prevent him from receiving a service that the court otherwise provides.³

Second, it appears, under the circumstances of this case, that appointed counsel would exceed Rule 1.100's policy of providing disabled persons with full and equal access to court services, programs or activities. An "attorney's role" is to serve "as the client's confidential advisor and advocate, a loyal representative whose duty it is to present the client's case in the most favorable possible light." *U.S. v. Arthur Young & Co.* (1984) 465 U.S. 805, 817. Appointed counsel here would take on a role far beyond basic provision of full and equal access to court services and proceedings.

3. CU0002207 Deborah J. Carver vs. Michael W. Horner

On the Court's motion, the hearing regarding Plaintiff/Appellant Carver's amended, proposed settled statement is vacated.

Plaintiff/Appellant elected in her December 23, 2025, notice designating the record on appeal to use a settled statement as the record of the oral proceedings in the superior court. *See* Rules of Court, rule 8.137. Given that Defendant/Respondent Horner did not file a notice under Rule 8.137(b)(4)(A), electing to provide a reporter's transcript, Plaintiff/Appellant was obligated to file a proposed statement in the superior court within 30 days of December 23, 2025, that is, by on or about January 22, 2026. Plaintiff/Appellant then proceeded to file various *untimely* proposed settled statements from February 17, 2026 to February 25, 2026. The operative *untimely* amended proposed statement, filed February 25, 2026, then was *improperly* noticed for hearing on March 20, 2026. *See* Rules of Court, rule 8.137(f)(1). ("No hearing will be held unless ordered...") Judge Timothy Fall issued a tentative ruling in connection with the March 20, 2026, hearing, and continued the hearing to April 3, 2026 because Plaintiff had failed to notice her request for oral argument as required. *See* Local Rule 4.05.03, Rules of Court, rule 3.1308(a)(1). To date, it does not appear that Defendant/Respondent has filed his response as required (within 20 days of appellant's service of the proposed statement). *See* Rules of Court, rule 8.137(e).

Defendant/Respondent is directed to file his response by no later than April 23, 2026. Thereafter, any party may seek to set a review hearing, which will be set in the Court's discretion. *See* Rules of Court, rule 8.137(f)(1).

The parties are reminded of their obligation to be familiar with and abide by all applicable Rules of Procedure, Rules of Court and Local Rules. The Clerk shall serve a copy of the minutes reflecting this order on all parties.

²"[T]he right to counsel [in a civil case] has been recognized to exist only where the litigant may lose his physical liberty if he loses the litigation." *Iraheta v. Superior Court* (1999) 70 Cal.App.4th 1500, 1503, 1508. There is no such risk here.

³ To the Court's knowledge, no published California decision has ever held that appointed counsel is an appropriate or required accommodation.